

24STCV20622 24STCV20622

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 24STCV20622 Hearing Date: June 24, 2026 Dept: 617

Dept.

617

Date:

6-24-26

Case

#: 24STCV20622

Trial

Date: 9-14-26

LEAVE TO AMEND

MOVING

PARTY: Plaintiff, Dinora Yaneth Martinez

RESPONDING

PARTY: Defendants, Ron Teegarden Enterprises, Inc., Jimmy Telles, and Jesus

Marquez

RELIEF

REQUESTED

Motion

for Leave to File First Amended Complaint

SUMMARY

OF ACTION

Plaintiff

Dinora Yaneth Martinez sued her employer, Defendant Ron Teegarden Enterprises,

Inc. (RTE), alleging that Defendant failed to accommodate her disabilities,

compensate her for overtime work, and provide her with required meal and rest

periods. Plaintiff also sues Defendants Jimmy Telles and Jesus Marquez,

individuals with responsibility to act on Plaintiff's grievances. Plaintiff

asserts multiple causes of action under the Fair Employment and Housing Act

(FEHA) and the Labor Code.

RULING: Granted in part.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of

the existence of its February 23, 2026 minute order and the truth of the

results reached therein. (Lockley v. Law Office of Cantrell, Green, Pekich,

Cruz & McCort (2001) 91 Cal.App.4th 875, 885-86.) The Court also takes

judicial notice of the existence of the docket for Plaintiff's workers'

compensation claim. (Evid. Code, § 452, subd. (d).)

Evidentiary Objections: Sustained

in part.

Objection Nos. 1-2 and 4-5 are

overruled. Objection No. 3 is sustained under the mediation privilege (Evid.

Code, § 1119, subdivision (a)), but only as to the following: "In later

discussions with counsel, I learned that Ron Teegarden was taking a back seat

in operations of the business and Yanlin was the key point of contact."

Plaintiff moves for leave to file

a First Amended Complaint adding her former joint-employer, Sourcing Logistics,

Inc. (SLI), and Yanlin Teegarden, owner and chief of operations for SLI and

RTE, as parties. Plaintiff also seeks to add 7 causes of action: (1) FEHA

Disability Discrimination; (2) Interference with CFRA Rights; (3) Failure to

Provide Personnel File; (4) Failure to Provide Wage Statements; (5) Failure to

Reimburse/Indemnify for Work-Related Expenditures; (6) Failure to Pay All Wages

Due Upon Separation; and (7) Wrongful Termination in Violation of Public

Policy. The basis for the amendments is discovery of the additional parties

through Defendants' document production and Yanlin's participation in the

litigation in April-June 2025 and the inadvertent omission of the additional causes of action from the original complaint. Defendants oppose the motion, arguing that Plaintiff's delay in moving for leave prejudices them and that certain claims are futile. Plaintiff's motion is granted in part, and she is only granted leave to add the additional causes of action.

A

motion for leave to amend must comply with the requirements set forth in California Rules of Court, rule 3.1324, which states as follows:

(a) Contents of motion

A

motion to amend a pleading before trial must:

(1)

Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the

previous pleading, if any, and where, by page, paragraph, and line number, the

additional allegations are located.

(b) Supporting declaration

A

separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and

proper;

(3) When the facts giving

rise to the amended allegations were discovered; and

(4)

The reasons why the request for amendment was not made

earlier.

Dilatory delays and prejudice to the opposing parties is a

valid ground for denial. (*Hirsa v.*

Superior Court (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the

amendment would require delaying the trial, resulting in loss of critical

evidence, or added costs of preparation such as an increased burden of

discovery. (*Magpali v. Farmers Group,*

Inc. (1996) 48 Cal.App.4th 471, 486-88.)

Leave

to amend is generally liberally granted. (Code Civ. Proc., § 473, subd. (a); Mesler v. Bragg Management Co. (1985) 39

Cal.3d 290, 296.) The Court will not generally consider the validity of the

proposed amended pleading in ruling on a motion for leave, instead deferring

such determinations for a demurrer or motion to strike, unless the proposed

amendment fails to state a valid claim as a matter of law. (Kittredge

Sports Co. v. Superior Court (1989) 213 Cal. App.3d 1045, 1048; California Casualty Gen. Ins. Co. v.

Superior Court (1985) 173 Cal.App.3d 274, 280-81 disapproved of on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23

Cal.4th 390.)

Defendants

are not prejudiced by amendment to add the 7 additional causes of action. The proposed

claims all relate to Plaintiff's employment with RTE, her disability, RTE's

alleged failure to accommodate her disability (including via a leave of

absence), and RTE's failure to pay wages. Contrary to Defendants' claim, the

wrongful termination cause of action is not barred by the statute of

limitations because it arises from the same alleged failure to accommodate

Plaintiff's disability and thus "relates back" to the allegations in her

original complaint. (Barrington v. A. H. Robins Co. (1985) 39 Cal.3d

146, 151.) With trial a little less than 3 months away, Defendants will have

sufficient time to conduct any further discovery on these related claims. Amendment to add the additional causes of action is thus proper.

On

the other hand, adding SLI and Yanlin severely prejudices Defendants. Plaintiff has been aware of SLI's joint-employer status since at least mid-2025 and of Yanlin's role at RTE since at least June 5, 2024 when she appeared as RTE's representative at Plaintiff's workers' compensation deposition. [Forman Decl. ¶ 2, Ex. A, p. 3.] SLI and Yanlin's need to conduct discovery and the provision of sufficient time to enable them to exercise their statutory right to bring a summary judgment motion entail another continuance of trial. (Polibrid Coatings, Inc. v. Superior Court (2003) 112 Cal.App.4th 920, 923-24 [belatedly-added defendant should be given "at least enough time for that party to reasonably complete discovery and bring a summary judgment motion"].) Plaintiff's justification for delay in amendment due to ongoing settlement discussions up until December 17, 2025 is insufficient, especially in the face of a looming trial. [Jensvold-Rumage Decl. ¶ 8.] Plaintiff is therefore not granted leave to add SLI and Yanlin to the instant action.

Plaintiff's

motion is thus granted in part. Plaintiff to file a First Amended Complaint in accordance with this order within 10 days.

Plaintiff

to give notice.